



IFFCO-TOKIO GENERAL INSURANCE CO. LTD.

Regd. Office: 34, Nehru Place, New Delhi - 110 019

MONEY INSURANCE POLICY

~~This Policy is evidence of the Contract between you and us. The proposal along with any written statement(s), declaration(s) of yours for purpose of this Policy forms part of this contract.~~

1.

~~This Policy witnesses that in consideration of your having paid the premium for the period stated in the Schedule or for any further period for which We may accept the payment for renewal of this Policy, We will insure your monies or the monies for which you are responsible as specified in the Schedule during the period of Insurance and accordingly We will indemnify you in respect of events occurring during the Period of Insurance in the manner and to the extent set forth in the Policy, provided that all the terms, conditions and exemptions of this Policy in so far as they relate to anything to be done or complied with by you have been met.~~

~~The schedule shall form part of this Policy and the term "Policy" whenever used shall be read as including the "Schedule".~~

1.1

~~Any word or expression to which a specific meaning has been attached in any part of this Policy or of Schedule shall bear such meaning wherever it may appear. Your Policy is based on information, which you have given us and the truth of these information shall be condition precedent to your right to recover under this Policy.~~

Model
Commercial
Lease

DEFINITION OF WORDS

1. Proposal

~~It means any signed proposal by filling up the questionnaires and declarations, written statements and any information in addition thereto supplied to us by you or on your behalf.~~

2. Policy:

~~It means the Policy Booklet, the Schedule and any applicable endorsements or memoranda. Your policy contains the details of the extent of the cover available to you, what is excluded from the cover and the conditions, warranties on which the Policy is issued.~~

3. Schedule:

~~It means the latest schedule issued by us as part of your Policy. It provides details of your Policy including full description of properties (Money) covered which are in force and the period of cover you have against the properties described.~~

~~A Revised Schedule will be sent at each renewal and whenever you request for a change in the cover.~~

4. Sum Insured:

~~It means the Monetary Amounts shown against any item.~~

5. We/Ours/Us:

~~It means THE IFFCO-TOKIO GENERAL INSURANCE COMPANY LTD.~~

6. You/Your:

~~It means the person(s)/the Company/the entity named as Insured in the Schedule.~~

7. Period of Insurance:

~~It means the duration of the Policy as shown in the Schedule.~~

8. Market Value:

~~It means the Replacement Value of insured property or item as New at the time of Damage or Loss less due allowance for betterment, wear and tear and/or depreciation.~~

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9. **Loss/Lost:**

~~It means the Damage or Loss.~~

10. **Excess:**

~~It means the first part of any claim for which you are responsible. Any Sum Insured/Limit will apply after the Excess has been deducted.~~

11. **Money:**

~~It means Cash, Bank Drafts, current coins, Bank and Currency Notes, Treasury Notes, Cheques, Postal Order, Current postage stamps which are not part of a collection and luncheon Voucher.~~

12. **Bank:**

~~It means and includes Bank of every description, Post Office, Government Treasury.~~

General Conditions:

1. **Reasonable Precaution and Care of Property:**

~~You shall take all reasonable precautions for safety and soundness of Insured Property and to prevent the loss in order to minimise claims. You must comply with Maker's recommended actions for inspection and maintenance and shall comply all statutory requirements or other regulations and will employ only competent and honest employees.~~

2. **Notice:**

~~You will give every notice and communication in writing to our office through which this insurance is affected.~~

3. **Misdescription:**

~~This Policy shall be void and all premium paid by you to us shall be forfeited in the event of misrepresentation, misdescription or concealment of any material information.~~

4. **Changes in Circumstances:**

Model
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Lease

~~You must inform us, as soon as possible, of any change in information you have provided to us about yourself, the properties insured, location of risk which may affect the insurance cover provided e.g. change of address, period of unoccupancy, security arrangements, mode of conveyance for carriage of Money etc.~~

~~You must also notify us about any alteration made whereby risk of loss/damage is increased. In case of such alteration made and not accepted by us in writing, the cover under this policy shall cease.~~

5. Claim Procedure and Requirements:

~~Upon happening of an event giving rise or which may give rise to a claim:~~

- ~~a) You or your authorised representative shall forthwith give notice in writing to our nearest office with a copy to Policy issuing office with full particulars. A written statement of the claim will be required and a claim form will be provided. This written statement of claim along with supporting documents (estimates, explanations, corroborative evidence of the statement of your family members, employees, vouchers, proof of ownership and the like) prepared at your expense along with particulars of other Insurances covering the same risk must be delivered to us within 14 days of date of Loss.~~
- ~~b) You shall lodge a complaint with the Police at the earliest after happening of the incident and take all practicable steps to apprehend the guilty person and recover the Money lost.~~

6. Claim Control and subrogation

~~We are entitled to:-~~

- ~~a) Receive all information, proof of damage and assistance from you and any other person seeking benefit under the Policy.~~
- ~~b) Take proceedings at our own expenses and for our own benefit, but in your name or income of any other person who is claiming or has received benefit, for the purpose tracing and recovering the Money lost or if securing reimbursement in respect of the Money lost and in the event of any or all of the money being recovered, it shall be imperative upon you to refund to us such a proportion of the Sum allowed by way of compensation as the amount recovered bears to the total amount of Money lost and also for enforcing any rights and remedies or obtaining compensation from other parties to which we shall be or would become entitled or subrogated, to recover any payment made or due under this Policy.~~

Model
Commercial
Lease

7. Fraud:

If any claim under this Policy is fraudulent in any respect with or without your knowledge or if any fraudulent means or devices are used by you or on your behalf to obtain any benefit under this Policy, all your benefits and rights under the Policy shall be forfeited.

8. Contribution:

If at the time of happening of any loss covered by this Policy, there shall be existing any other Insurance of any nature covering the same property, whether effected by you or not, then we will pay only rateable proportion.

9. Cancellation:

We may cancel this policy by sending 7 days notice in writing by Regd.A.D. to you at your last known address. In respect of the Section I of the Schedule, the premium paid shall be adjusted on the basis of the actual amount in transit during the period of Insurance and in respect of Section II on pro-rata basis. You may also cancel this Policy by giving 7 days Notice in writing to us, in which case, the premium under Section I of the Schedule shall be adjusted on the basis of the actual amount in transit during the period of insurance and in respect of Section II on the following scale:

Dated

[LANDLORD]

and

[TENANT]

and

[TENANT'S GUARANTOR]

and

[ASSIGNEE]

Model
Commercial
Lease

[ASSIGNEE'S GUARANTOR]

Period of Cover upto		<u>LICENCE TO ASSIGN</u>
		Relating to premises known as [DESCRIPTION]
		Rate of Premium to be retained
Upto 1 Month	25% of Annual Rate	
Upto 3 Months	(New tenancy / no change of use) 50% of Annual Rate	
	Upto 6 Months	75% of Annual Rate
	Exceeding 6 Months	Full Annual Rate

CONTENTS

~~10. Arbitration:~~

~~Should any dispute arise between YOU and US on quantum of amount payable (liability being otherwise admitted by us), such dispute will independently of all other questions be referred to the decision of Arbitrator(s) in accordance with statutory provision(s) of the country in force at that time. Further, if/when any dispute is referable or referred to Arbitration, the making of an award by Arbitrator(s) shall be a condition precedent to any right of action by YOU against US.~~

11. Disclaimer Clause	Page:
1. Definitions	1
2. Interpretation	6
3. Licence to assign	7
4. Assignee's obligations	7
5. Tenant's obligations	8
6. [Assignee's Guarantor	8
7. [Tenant's Guarantor	8
8. Termination of this Licence	8
9. Agreements	9
10. Notices	9
11. Jurisdiction	9
12. Legal effect	9
Schedule 1	10
Guarantee	10

LICENCE TO ASSIGN¹

DATED

PARTIES

1. [LANDLORD] (incorporated and registered in [England and Wales] [the United Kingdom] [COUNTRY] under company registration number [COMPANY NUMBER]), the registered office of which is at [ADDRESS] (the “Landlord”); [and]
2. [TENANT] (incorporated and registered in [England and Wales] [the United Kingdom] [COUNTRY] under company registration number [COMPANY NUMBER]), the registered office of which is at [ADDRESS] (the “Tenant”); [and]
3. [[TENANT’S GUARANTOR] (incorporated and registered in [England and Wales] [the United Kingdom] [COUNTRY] under company registration number [COMPANY NUMBER]), the registered office of which is at [ADDRESS] (the “Tenant’s Guarantor”); [and]]
4. [ASSIGNEE] (incorporated and registered in [England and Wales] [the United Kingdom] [COUNTRY] under company registration number [COMPANY NUMBER]), the registered office of which is at [ADDRESS] (the “Assignee”); [and]
5. [[ASSIGNEE’S GUARANTOR] (incorporated and registered in [England and Wales] [the United Kingdom] [COUNTRY] under company registration number [COMPANY NUMBER]), the registered office of which is at [ADDRESS] (the “Assignee’s Guarantor”).]

BACKGROUND

- (A) This Licence relates to the Premises and is supplemental to the Lease.
- (B) The Landlord [remains/is now] the landlord under the Lease and the Tenant [remains/is now] the tenant under the Lease.
- (C) The Landlord has agreed to permit the Assignment subject to the terms contained in this Licence.

IT IS AGREED AS FOLLOWS

~~Definitions If we shall disclaim our liability in any claim, and such claim shall not have been made subject matter of a suit in a court of law within 12 months from the date of disclaimer, then the claim shall for all purposes be deemed to have been abandoned and shall not thereafter be recoverable under this Policy.~~

12. ~~Interest/Penalty:~~

~~No sum payable under this policy shall carry any interest or penalty.~~

13. ~~Geographical Scope:~~

~~The geographical scope of this policy will be India.~~

¹ When drafting this Licence consider whether additional documents such as a rent deposit deed, licence to alter or licence to change use will be required on the assignment of the Lease.

11. Renewal Notice:

~~We shall not be bound to accept any renewal premium or give notice that such renewal is due.~~

SCOPE

In the event of loss of Money and/or damages to property as specified in the Schedule happening during the currency of the Policy in accordance with "What is covered", We will indemnify you against such loss subject to limits stated in the Schedule.

COVERAGE

What is covered	What is not covered
The ambit of this cover is: 1. Loss of Money in Transit, by you or your authorised representative(s) including employees occasioned by Robbery, Theft or any other fortuitous cause. 2. Loss of Money by Burglary, Housebreaking, Robbery or Hold up whilst in premises during business hours or in Safe(s), Strong Room(s) at business premises outside business hours. 3. Loss of personal Money or damage to clothing and personal effects sustained by any of your Director or employee as a result of robbery or hold up or any attempted threat in the course of their duties for you subject to our maximum liability being restricted to sum of Rs.5000/- (five thousand) in any one period of insurance. 4. Loss of or damage caused by Burglary, Housebreaking, Robbery or Hold up, to your Safe, Strongroom or Cash boxes or franking machines or cash bag or waist coat when such are used for the carriage of Money subject to our maximum liability being restricted to a sum of Rs.10,000/-	We will not be liable for: i) Shortage due to error or omission. ii) Loss of Money and/or damage to property entrusted to any person other than you, your authorised representative including your authorised employee(s). iii) Loss of Money where and or damage to property when you or your authorised representative(s)/employee is involved as principal or accessory except loss due to fraud or dishonesty of Cash carrying person who is your authorised representative/ employee occurring whilst in transit and discovered within 48 hours. iv) Loss occurring on the Premises after business hours unless the Money is in a locked Safe or Strong room. v) Loss occasioned by Riot, Strike and Terrorist Activity. vi) Money carried under contract of affreightment and theft of Money from any unattended vehicle. vii) Loss directly or indirectly occasioned by or happening through or in consequence of war and war like situation, Invasion, act of foreign enemy, hostilities (whether war be declared or not), Civil war, rebellion, revolution, insurrection, Military or usurped power, Confiscation, nationalisation, or loot

(Ten thousand) in any one period of Insurance. It is provide that Our liability in respect of clause 3) and 4) will be there only if we have accepted the liability under clause 1) or 2).	pilage in connection herewith. viii) Any Loss arising from or in consequence of requisition by or under order of any Public Authority. ix) ——— a) Loss to any property whatsoever or any expenses whatsoever resulting or arising there from or any consequential loss: b) Any legal liability of whatsoever nature directly or indirectly caused by or contributed to by or arising from ionising radiation or contamination by radio activity from any source whatsoever. x) ——— Damage caused by wear & tear and depreciation. xi) ——— Consequential loss of any kind or description including any reduction of market value beyond cost of repair or replacement. xii) ——— Loss of Money and/or other property abstracted from safe following the use of key to the said safe or any duplicate thereof belonging to you unless such key has been obtained by assault or violence or any threat thereof.
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SPECIAL CONDITIONS

1. ——— Adjustment of Premium

~~The premium in so far as it relates to Money in Transit is to be regulated by the amount of such Money in transit during each period of Insurance and for this purpose a proper record shall be kept in your Books of Account which you shall at all reasonable times allow us to inspect within one month from expiry of each period of Insurance. You shall furnish to us with a correct account of the amount of all such Money in transit during the period and if the ascertained amount shall differ from the estimated amount on which premium has been paid, the difference in premium shall be met by a further proportionate payment to us or by a refund by us as the case may be, but in no case shall be refunded by more than fifty percent (50%) of the premium stated in the Schedule and Retention of premium by us shall not be less than the minimum of Rs.30/- (Thirty).~~

2. **Maintenance of Books and Keys:**

~~You will keep a complete account/record of Money contained in the Safe or Strong room and/or at any other place under lock and key on daily basis. This complete account of money shall be deposited in a secured place other than the Safe, strong room and the said place where Money is kept and be produced as documentary evidence of the claim under the Policy. The keys of the Safe, Strong room or the said place shall not be left on the premises out of business hours unless the premises are occupied by you or any of your authorised employee in which case such keys if left on the premises shall be deposited in a secure place not in the vicinity of the safe, strong room or the place containing the Money.~~

3. **Onus of Proof:**

~~If any action, suit or other proceedings where we allege that by reason of the above provisions any loss is not covered by this Insurance, the burden of proving that such loss is covered shall be upon you.~~

1.

1.1 This Licence uses the following definitions:

["1986 Act"]

the Insolvency Act 1986;²

"1995 Act"

the Landlord and Tenant (Covenants) Act 1995;

"Assignment"

the assignment permitted under **clause 3**;

"Assignment Date"

the date of the [deed of assignment][transfer] of the Lease to the Assignee;

["Business Day"]

a day (other than a Saturday, Sunday or public holiday) on which banks are usually open for business in England and Wales;³

["Guaranteed Party"]

the person whose obligations are guaranteed by a Guarantor;]

["Guarantor"]

any person who gives a guarantee to the Landlord under this Licence;]

² Include this definition only where you are including the guarantee provisions in **Schedule 1**.

³ Include this definition only where you are including the guarantee provisions in **Schedule 1**.

“Lease”

a lease dated [DATE] between (1) [the Landlord] and (2) [the Tenant] [and (3) [NAME OF ORIGINAL GUARANTOR]] and any document supplemental to it;

“Liability Period”

the period starting on the Assignment Date and ending on the date that the Assignee is released from the Tenant’s Obligations under the 1995 Act;

“Premises”

the property let by the Lease known as [ADDRESS];

“Rents”

the rents reserved by the Lease;

“Tenant’s Obligations”

the tenant’s obligations in the Lease;

“Term”

the term of the Lease [including where applicable any continuation of that period under the Landlord and Tenant Act 1954⁴].

2. INTERPRETATION

2.1 All headings in this Licence are for ease of reference only and will not affect its construction or interpretation.

2.2 In this Licence, “includes”, “including” and similar words are used without limitation or qualification to the subject matter of the relevant provision.

2.3 In this Licence:

2.3.1 “notice” means any notice, notification or request given or made under it; and

2.3.2 a notice must be given or made in writing.

2.4 References in this Licence to:

2.4.1 the parties include references to their respective successors in title;

2.4.2 an Act are to that Act as amended from time to time and to any Act that replaces it;

2.4.3 the singular include the plural and vice versa, and one gender includes any other;

2.4.4 clauses and Schedules are to the clauses of and Schedules to this Licence and references to paragraphs are to the paragraphs of the Schedule in which the references are made;

2.4.5 the Landlord having a right of approval or consent mean a prior written approval or consent, which will not be unreasonably withheld or delayed except where this Licence states that the Landlord has absolute discretion; and

2.4.6 any sums being payable on demand or when demanded mean being payable when demanded in writing.

⁴ Delete the wording in square brackets if the Lease is contracted out of the Landlord and Tenant Act 1954.

2.5 Obligations in this Licence:

2.5.1 owed by or to more than one person are owed by or to them jointly and severally;

2.5.2 to do something include an obligation not to waive any obligation of another person to do it; and

2.5.3 not to do something include an obligation not to permit or allow another person to do it.

2.6 Where the Tenant is obliged to pay any costs that the Landlord incurs (or any proportion of them) under this Licence, those costs must be reasonable and proper and reasonably and properly incurred.

2.7 If any provision or part of any provision of this Licence is held to be illegal, invalid or unenforceable, that provision or part will apply with such modification as may be necessary to make it legal, valid and enforceable. If modification is not possible, that provision or part will be deemed to be deleted. The legality, validity or enforceability of the remainder of this Licence will not be affected.

3. LICENCE TO ASSIGN

3.1 The Landlord permits the Tenant to assign the Lease to the Assignee on the terms of this Licence.

4. ASSIGNEE'S OBLIGATIONS

4.1 The Assignee must:

4.1.1 comply with all of the Tenant's Obligations throughout the Liability Period; and

4.1.2 not occupy the Premises before the Assignment Date.

[WHERE THE LEASE IS REGISTERED AT HM LAND REGISTRY]

4.2 [The Assignee must:

4.2.1 procure the registration of the Assignment by HM Land Registry as soon as reasonably practicable after the Assignment Date; and

4.2.2 within one month of completion of the registration of the Assignment, produce to the Landlord's solicitors an official copy of the register of title showing the Assignee as the registered proprietor of the Lease.]⁵

[WHERE THE ASSIGNMENT OF THE LEASE WILL TRIGGER FIRST REGISTRATION AT HM LAND REGISTRY]

4.3 [The Assignee must:

4.3.1 procure the first registration of the Lease by HM Land Registry as soon as reasonably practicable after the Assignment Date;

4.3.2 not submit to HM Land Registry any plan of the Premises (other than a plan attached to the Lease) without the prior written approval of the Landlord; and

4.3.3 within one month of completion of the registration of the Lease, produce to the Landlord's solicitors an official copy of the register of title and of the title plan showing the Assignee as the registered proprietor of the Lease.]⁶

⁵ Clause 4.2 will be required only where title to the Lease is already registered at HM Land Registry.

5. TENANT'S OBLIGATIONS

5.1 The Tenant must:

- 5.1.1 pay on completion of this Licence all costs and expenses, and any value added tax on them that cannot otherwise be recovered, incurred by the Landlord [and any superior landlord and mortgagee] in connection with this Licence;
- 5.1.2 not seek to enforce any of the landlord's obligations under the Lease nor exercise any of the tenant's rights under the Lease on or after the Assignment Date;
- 5.1.3 within seven days from the Assignment Date, give notice to the Landlord of the name and address of the party to whom future rent demands should be sent; and
- 5.1.4 within one month from the Assignment Date (or such other period as may be specified in the Lease), produce to the Landlord's solicitors a certified copy of the deed effecting the Assignment and pay any registration fee required by the Lease.

5.2 The Tenant, as primary obligor, guarantees to the Landlord that, starting on the Assignment Date, the Assignee will comply with the Tenant's Obligations throughout the Liability Period. If the Assignee defaults, the Tenant will itself comply with those obligations and will indemnify the Landlord against all losses, costs, damages and expenses caused to the Landlord by that default. This guarantee:

- 5.2.1 incorporates the provisions of **Schedule 1**; and
- 5.2.2 is an authorised guarantee agreement for the purposes of section 16 of the 1995 Act.

6. [ASSIGNEE'S GUARANTOR

6.1 The Assignee's Guarantor, as primary obligor, guarantees to the Landlord that, starting on the Assignment Date, the Assignee will comply with the Tenant's Obligations throughout the Liability Period. If the Assignee defaults, the Assignee's Guarantor will itself comply with those obligations and will indemnify the Landlord against all losses, costs, damages and expenses caused to the Landlord by that default. This guarantee incorporates the provisions of **Schedule 1.**

6.2 The Assignee's Guarantor agrees with the Landlord that, if the Landlord asks it to do so, it will give the Landlord a guarantee of any authorised guarantee agreement given to the Landlord by the Assignee on an assignment of the Lease, such guarantee to incorporate the provisions of **Schedule 1.]**

7. [TENANT'S GUARANTOR

7.1 The Tenant's Guarantor, as primary obligor, guarantees to the Landlord that, starting on the Assignment Date, the Tenant will comply with its obligations under **clause 5.2 throughout the Liability Period. If the Tenant defaults, the Tenant's Guarantor will itself comply with those obligations and will indemnify the Landlord against all losses, costs, damages and expenses caused to the Landlord by that default. This guarantee incorporates the provisions of **Schedule 1**.]**

8. TERMINATION OF THIS LICENCE

8.1 The Landlord may terminate this Licence by written notice to the Tenant if the Assignment Date has not occurred within the period of three months starting on the date of this Licence.

6 Clause 4.3 will be required only where the Assignment will trigger an obligation for first registration of the Lease.

8.2 Any termination of this Licence under **clause 8.1** will be:

8.2.1 without prejudice to any rights or remedies of any party to this Licence in respect of or arising from any previous breach by any other party to this Licence; and

8.2.2 without liability on the part of the Landlord to refund any moneys paid in connection with this Licence.

9. **AGREEMENTS**

9.1 Nothing in this Licence will:

9.1.1 be deemed to authorise any action other than expressly authorised in **clause 3**;

9.1.2 release or reduce any liability to the Landlord of the Tenant or any guarantor or other party to the Lease; or

9.1.3 waive or be deemed to waive any breach of the Tenant's Obligations that may have occurred before the date of this Licence.

9.2 All sums payable by the Tenant under this Licence will be recoverable as rent in arrear in accordance with the Lease.

9.3 Where any sums become payable under the Lease after the Assignment Date that relate in whole or in part to the period before the Assignment Date, the Assignee will be liable for the whole of the sums payable.

9.4 Nothing in this Licence creates any rights benefiting any person under the Contracts (Rights of Third Parties) Act 1999.

10. **NOTICES**

10.1 Any notices to be served under this Licence will be validly served if served in accordance with [section 196 Law of Property Act 1925][the notice provisions in the Lease].

11. **JURISDICTION**

11.1 This Licence and any non-contractual obligations arising out of or in connection with it will be governed by the law of England and Wales.

11.2 Subject to **clause 11.3**, the courts of England and Wales have exclusive jurisdiction to determine any dispute arising out of or in connection with this Licence, including in relation to any non-contractual obligations.

11.3 Any party may seek to enforce an order of the courts of England and Wales arising out of or in connection with this Licence, including in relation to any non-contractual obligations, in any court of competent jurisdiction.

12. **LEGAL EFFECT**

12.1 This Licence takes effect and binds the parties with effect from the date set out at the beginning of this Licence.

SCHEDULE 1

Guarantee

1. Guarantor's obligations

- 1.1 The Guarantor, as primary obligor, guarantees to the Landlord that it will indemnify the Landlord against all losses, costs, damages and expenses caused to the Landlord by the Guaranteed Party proposing or entering into any company voluntary arrangement, scheme of arrangement or other scheme having or purporting to have the effect of impairing, compromising or releasing any or all of the obligations of the Guarantor in this Licence.
- 1.2 If the Landlord in its absolute discretion notifies the Guarantor within three months after the date of any disclaimer of the Lease, the Guarantor must, within ten Business Days, at the Landlord's option either:
- 1.2.1 at the Guarantor's own cost (including payment of the Landlord's costs) accept the grant of a lease of the Premises;
 - 1.2.2 for a term starting and taking effect on the date of the disclaimer of the Lease;
 - 1.2.3 ending on the date when the Lease would have ended if the disclaimer had not happened;
 - 1.2.4 at the same rent and other sums payable;
 - 1.2.5 containing a rent review date on the term commencement date of the new lease if there is a rent review under the Lease that falls before that term commencement date that has not been concluded (but with the rent being reviewed as at the date of the unconcluded rent review);
 - 1.2.6 containing rent review dates on each rent review date under the Lease that falls on or after the term commencement date of the new lease; and
 - 1.2.7 otherwise on the same obligations and conditions in the Lease;⁷ or
 - 1.2.8 pay the Landlord any arrears of the Rents, outgoings and any other sums payable under the Lease plus the amount equivalent to the total of those sums due that would have been payable for the period of 6 months following the disclaimer had there been no such disclaimer.⁸
- 1.3 Where the guarantee has been given by the Assignee's Guarantor, references in **paragraph 1.2** to the disclaimer of the Lease will include references to the forfeiture of the Lease and the Assignee being struck off the register of companies.
- 1.4 If **paragraph 1.2.8** applies then, on receipt of the payment in full, the Landlord must release the Guarantor from its future obligations under its guarantee (but that will not affect the Landlord's rights in relation to any prior breaches).
- 1.5 The Guarantor's liability will not be reduced or discharged by:
- 1.5.1 any failure for any reason to enforce in full or any delay in enforcement of, any right against, or any concession allowed to the Guaranteed Party or any third party;

⁷ No 1954 Act exclusion wording is included. Although technically this would be required to achieve 1954 Act exclusion of the new lease (if original lease is 1954 Act-excluded), new leases under these clauses are so rare that the cost of allowing for 1954 Act-exclusion is likely to outweigh the benefit. The Landlord can therefore choose between the grant of a lease within the 1954 Act and the payment of a lump sum.

⁸ There is no right to repayment if the Landlord subsequently re-lets the Premises during the six month period covered by this payment.

- 1.5.2 any variation of the Lease (except that a surrender of part will end the Guarantor's future liability in respect of the surrendered part);
- 1.5.3 any right to set-off or counterclaim that the Guaranteed Party or the Guarantor may have;
- 1.5.4 any death, incapacity, disability or change in the constitution or status of any party to this Licence or of any other person who is liable for the performance of the Tenant's Obligations;
- 1.5.5 any amalgamation or merger by any party with any other person, any restructuring or the acquisition of the whole or any part of the assets or undertaking of any party by any other person;
- 1.5.6 the existence or occurrence of any matter referred to in **paragraph 1.6**; or
- 1.5.7 anything else other than a release by the Landlord by deed.

1.6 The matters referred to in **paragraph 1.5.6** are:

- 1.6.1 any Law of Property Act 1925, administrative, court-appointed or other receiver or similar officer is appointed over the whole or any part of the assets of the Guaranteed Party or the Guaranteed Party enters into any scheme or arrangement with its creditors in satisfaction or composition of its debts under the 1986 Act;
- 1.6.2 if the Guaranteed Party is a company or a limited liability partnership:
 - (a) the Guaranteed Party enters into liquidation within the meaning of section 247 of the 1986 Act;
 - (b) the Guaranteed Party is wound up or a petition for winding up is presented against the Guaranteed Party that is not dismissed or withdrawn within [NUMBER] days of being presented;
 - (c) a meeting of the Guaranteed Party's creditors or any of them is summoned under Part I of the 1986 Act;
 - (d) a moratorium in respect of the Guaranteed Party comes into force under section 1(A) of and schedule A1 to the 1986 Act;
 - (e) an administrator is appointed to the Guaranteed Party; or
 - (f) the Guaranteed Party is struck off the register of companies;
- 1.6.3 if the Guaranteed Party is a partnership, it is subject to an event similar to any listed in **paragraph 1.6.2** with appropriate modifications so as to relate to a partnership;
- 1.6.4 if the Guaranteed Party is an individual:
 - (a) a receiving order is made against the Guaranteed Party;
 - (b) an interim receiver is appointed over or in relation to the Guaranteed Party's property;
 - (c) the Guaranteed Party makes an application to be declared bankrupt, the Guaranteed Party is the subject of a bankruptcy petition or the Guaranteed Party becomes bankrupt;

- (d) the Guaranteed Party applies for or becomes subject to a debt relief order or the Guaranteed Party proposes or becomes subject to a debt management plan; or
 - (e) an interim order is made against the Guaranteed Party under Part VIII of the 1986 Act or the Guaranteed Party otherwise proposes an individual voluntary arrangement;
- 1.6.5 any event similar to any listed in **paragraphs 1.6.1 to 1.6.4** occurs in any jurisdiction (whether it be England and Wales, or elsewhere); and
- 1.6.6 any event similar to any listed in **paragraphs 1.6.1 to 1.6.5** occurs in relation to the Guarantor.
- 1.7 The Guarantor must not claim in competition with the Landlord in the insolvency of the Guaranteed Party and must not take any security, indemnity or guarantee from the Guaranteed Party in respect of the Tenant's Obligations.
- 1.8 Nothing in this **paragraph 1** may impose any liability on the Guarantor that exceeds the liability that it would have had were it the tenant of the Lease.

Executed as a deed by the Landlord acting by _____)

[a director and its secretary] or by [two directors]: _____)

Signature of Director

Signature of Director/Secretary

Executed as a deed by the Tenant acting by _____)

[a director and its secretary] or by [two directors]: _____)

Signature of Director

Signature of Director/Secretary

Executed as a deed by the Assignee acting by _____)

[a director and its secretary] or by [two directors]: _____)

Signature of Director

Signature of Director/Secretary

[Executed as a deed by the Assignee's Guarantor _____)

acting by [a director and its secretary] or by _____)

[two directors]: _____)

Signature of Director

Signature of Director/Secretary]

[Executed as a deed by the Tenant's Guarantor _____)

acting by [a director and its secretary] or by _____)

[two directors]: _____)

Signature of Director

Signature of Director/Secretary]